

N.J. Supreme Court rules state council exceeded authority in DWI surcharge decision

BY SOPHIE NIETO-MUNOZ - JULY 6, 2026 4:23 PM



□ The unanimous ruling resolves a lawsuit filed by two drivers convicted of DWIs who argued they were owed refunds after the surcharge was supposedly invalidated.

New Jersey's highest court [ruled](#) that a little-known state council overstepped its authority nearly a decade ago when it tried to strike a \$25 surcharge on drunk driving fines, keeping the fee in place for New Jersey drivers convicted of driving while intoxicated.

The unanimous ruling, written by Justice Michael Noriega, resolves a lawsuit filed by two drivers who argued they were owed refunds after the surcharge was supposedly invalidated in 2016.

The case dates to 2014, when lawmakers required municipalities to equip police vehicles with dashboard cameras if they were primarily used for traffic stops. To help pay for it, lawmakers raised the DWI surcharge fee from \$100 to \$125, directing the additional \$25 to the cost of the cameras.

Deptford Township challenged the camera mandate in 2015 before the Council on Local Mandates, a state body created by a 1995 constitutional amendment to decide whether state laws should stick local governments with

unfunded costs. The township argued that the surcharge wouldn't come close to covering the expense.

The council agreed in 2016, and went a step further by declaring the \$25 surcharge as “nugatory,” or invalid, even though Deptford never asked it to rule on the surcharge itself.

Rebecca Reed and Amanda Curry, two women who were convicted of DWI, sued in 2021 and argued that the council's finding meant that the surcharge wasn't valid, and that they and other drivers were owed \$25 refunds. A trial court and the Appellate Division both rejected that argument, ruling the surcharge was a separate funding mechanism.

The state Supreme Court agreed with the lower courts, but also rejected the state's broader arguments that council rulings are off-limits to judicial reviews. The justices held that courts can't second-guess the council's determination of what counts as an unfunded mandate — that stays a “political” decision, not a judicial one.

But courts can step in when the council goes beyond that authority, the ruling determined. The council's own statute limits its rulings to the “specific provision” in dispute and requires it to leave the rest of a law intact “as far as possible.”

The justices also said that the council's 2016 decision “swept beyond the unfunded mandate and purported to nullify a revenue provision that was neither an unfunded mandate nor an issue before the Council.”

“The authority to revise, repurpose, strike, or sever a funding provision lies with the Legislature, not the Council,” the court wrote, adding that it's now up to lawmakers to decide what happens to the surcharge.